



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 07/29/2026 - 09:00 AM

07/21/2026

1:05 PM

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Judge: Brown, Gilbert

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY OF SAN MATEO

Probate

Department 44

Courtroom 2C

Hon. Gilbert T. Brown

July 29, 2026 - 9:00 AM

**If an appearance by Zoom is allowed, parties must appear through Zoom Video.
Zoom Audio is only to be used if Zoom Video is unavailable.
Please check in with the clerk by 8:45 AM.**

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.

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18-PRO-00526	Conservatorship of MIRA DAUM	For final account or request for waiver and discharge
Line 1	Proposed Conservatee: DAUM, MIRA (Pro Se) Petitioner: DAUM, WOLFGANG (Pro Se) Petitioner: JACOB, ASTRID (Pro Se) Proposed Conservator: DAUM, WOLFGANG (Pro Se) Proposed Conservator: JACOB, ASTRID (Pro Se) Conservatee: DAUM, MIRA (Pro Se) Conservator: DAUM, WOLFGANG (Pro Se) Conservator: JACOB, ASTRID (Pro Se) Brother: JACOB, MARTIN (STENEBOG, JENNIFER L STENEBOG, JENNIFER L) STENEBOG, JENNIFER L) Father: DAUM, WOLFGANG (Pro Se) Mother: JACOB, ASTRID (Pro Se)	Petition Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Wolfgang Daum and Astrid Jacob are ordered to appear and explain why they have not filed the required documents ordered at the last hearing on 2/25/2026. If Wolfgang Daum and Astrid Jacob fail to appear and explain why the required documents have not been filed, the Court intends to issue an Order to Show Cause as to why they should not be sanctioned for failure to comply with a lawful court order and failure to file the following documents: 1) a final account or request for wavier of account (Petitioner may use Judicial Council form Request and Order for Waiver of Accounting from GC410), 2) financial statements for funds (not including trust assets) that the conservator managed on behalf of the conservatee (including public benefits) and 3) the form Ex Parte Petition for Final Discharge and Order (Judicial council form DE-295/GC-395). The Order to Show Cause would be set on December 8, 2026 at 9:00 am.

24-PRO-01026	Estate of THURMAN H NICHOLS, JR	Continued on 06/08/2026
Line 2	Petitioner: Tozzi, Tracey (HAAS, ELLEN B.) Decedent: NICHOLS, THURMAN H, JR Personal Representative: Tozzi, Tracey	Petition for Final Distribution

Tentative Ruling:

APPEARANCE OPTIONAL

Petition for Final Distribution as supplemented is GRANTED absent cogent objection. Revised formal order is required.



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24-PRO-01556	Estate of FRANKLIN MICHAEL PAYA	Petition for Order Approving Acts of Personal Representative and Trustee, etc.
Line 3, 4	Petitioner: Marglin, Susan Renee (RUIZ, MARK A.) Decedent: PAYA, FRANKLIN MICHAEL Personal Representative: MARGLIN, SUSAN RENEE	Petition Hearing Petition for Final Distribution

Tentative Ruling:

APPEARANCE OPTIONAL

The Petition for Final Distribution is CONTINUED to September 30, 2026 at 9:00 am for Petitioner to comply with Local Rule 4.56 by setting forth specifically the manner in which the estate is to be distributed by showing the distributee's name and a description of the property or cash, including bank account location, number and amount, to be distributed. The Petition for Order Approving Acts of Personal Representative and Trustee, Reimbursement and Payment of Attorneys Fees is CONTINUED to September 30, 2026 at 9:00 am for Petitioner to file a verification as required by CRC 7.103(b). Petitioner is also directed to file formal orders.

25-PRO-00037	Estate of JEAN A. KINTZ	REPORT OF EXECUTOR AND PETITION FOR SETTLEMENT OF ESTATE, REQUEST FOR WAIVER OF ACCOUNTING AND ALLOWANCE OF FEES AND FOR FINAL DISTRIBUTION
Line 5	Petitioner: Kintz, Michael Don (ADAM, FRANK G.) Decedent: KINTZ, JEAN A. Decedent: Kintz, Jean Alice Personal Representative: Kintz, Michael Don	Petition for Final Distribution

Tentative Ruling:

NO APPEARANCE

Amended Petition for Final Distribution is GRANTED absent cogent objection.



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25-PRO-00112	Estate of Jackie Yiu Fai Huen	Petition for Preliminary Distribution (Probate Code 11620) -requesting authority for preliminary distribution of estate assets and approval of proposed order
Line 6	Petitioner: Huen, Johnny Yiu Chung (Pro Se) Decedent: Huen, Jackie Yiu Fai Interested Party: DEPARTMENT OF HEALTH CARE SERVICES Personal Representative: Huen, Johnny Yiu Chung Claimant: DEPARTMENT OF HEALTH CARE SERVICES Claimant: LIANG, XINYAN	Petition Hearing
Tentative Ruling: APPEARANCE OPTIONAL Amended Petition for Order for Preliminary Distribution is <u>CONTINUED to October 2, 2026 at 9:00 am</u> for Petitioner to file a supplement addressing why petitioner has not filed a petition for final distribution or a status of administration within the timeline set forth in Probate Code 12200. Also see Probate Code 12201. Petitioner should also address why the preliminary distribution is being requested.		

25-PRO-00976	Estate of Christopher Lewis	FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATION, etc.
Line 7	Petitioner: Gregg, Vivian (AYOUB, ALEXANDRA M. FUJIKAWA, NANCY Z.) Decedent: Lewis, Christopher Personal Representative: Gregg, Vivian Claimant: BANK OF AMERICA, N.A. Claimant: JPMORGAN CHASE BANK N.A.	Petition Hearing
Tentative Ruling: APPEARANCE OPTIONAL Petition for Final Distribution is <u>CONTINUED to October 9, 2026 at 9:00 am</u> for Petitioner to comply with Local Rule 4.16 and Probate Code 13502, and for Petitioner to file a supplement addressing (1) why it appears that the community property was distributed 50% to Petitioner and 50% to Decedent's sibling, rather than 100% to Petitioner as the surviving spouse, and for Petitioner to clarify how after-discovered property is distributed because Paragraphs 25 and 26 do not state that 100% of the community property later discovered would be distributed to the surviving spouse. Revised order required.		



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25-PRO-01389	IN RE THE CAIRNEY KERWIN TRUST DATED SEPTEMBER 14, 2014	Status RE: Confirming of Amendments to Trust; Directing Trustee to Distribute Trust Assets; For Constructive Trust; Transfer of Property Pursuant to Probate Code Section 850; and Enforcement of Post Nuptial Agreement
Line 8	Petitioner: Kerwin Gordon, Katherine (GEISICK, MATTHEW) Respondent: Cairney, Brian (RYAN, NORMAN A. LYTTLE, BRETT S.) Decedent: KERWIN, TERRI	Status Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

The Petition Confirming Amendments to Trust is CONTINUED to January, 8, 2027 at 9:00 am for status. Parties are ordered to file status reports ten (10) days before the next hearing. Special Motion to Strike Under CCP § 425.16 (ANTI-SLAPP STATUTE) set on 10/9/2026 is taken OFF CALENDAR in light of the Notice of Withdrawal of Special Motion to Strike filed on 6/9/2026.

25-PRO-01717	IN THE MATTER OF THE OTTO FRANZ ZAVER SCHMIDT 2020 DECLARATION OF RE-STATED TRUST, 12/31/2020	PETITION TO APPOINT SUCCESSOR TRUSTEE TO ASSUME ADMINISTRATION OF THE OTTO FRANZ ZAVER SCHMIDT 2020 DECLARATION OF RE-STATED TRUST- Continued from 05/20/26
Line 9	Petitioner: Springer, Patrick (WINSLOW, CRAIG V.) Decedent: SCHMIDT, OTTO FRANZ ZAVER	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

The request to waive bond is DENIED. The remainder of the Petition to Appoint Successor Trustee to Assume Administration of the Otto Franz Zaver Schmidt 2020 Declaration of Re-Stated Trust is GRANTED. Bond is set in the amount of \$2,100,000.00. Formal order required.



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26-PRO-00259	IN RE: TRUST CREATED BY THE WILL OF MADGE W. RICE	PETITION FOR APPOINTMENT OF SUCCESSOR TRUSTEE, SUPPORTING DECLARATION, AND NOMINATION
Line 10	Petitioner: Rice, John S. (SEHER, ALAN R.) Decedent: RICE, MADGE	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

Petition for Appointment of Successor Trustee is GRANTED absent cogent objection. Formal order required.

26-PRO-00370	Estate of Howard Watts Williams	AMENDED*- Continued from 06/24/26
Line 11	Petitioner: Jacobs, Bridgette (Pro Se) Decedent: Williams, Howard Watts Proposed Personal Representative: Jacobs, Bridgette	Letters of Administration Hearing with ATA

Tentative Ruling:

NO APPEARANCE

Petition GRANTED absent cogent objection.



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26-PRO-00654	Estate of Harold Arthur Lawrence	Status RE: Original Will
Line 12	Petitioner: SAN MATEO COUNTY PUBLIC ADMINISTRATOR (SAN MATEO COUNTY ATTORNEY'S OFFICE ELLARD, JAN E. HAULK, JENNIFER L.) Decedent: Lawrence, Harold Arthur Proposed Personal Representative: SAN MATEO COUNTY PUBLIC ADMINISTRATOR	Status Hearing
Tentative Ruling: NO APPEARANCE Petition GRANTED absent cogent objection.		

PRO118717	CONSERVATORSHIP OF KRISTEN ALEXANDRA SEIDEL	
Line 13	Conservatee: SEIDEL, KRISTEN ALEXANDRA Conservator: SEIDEL, JOSEPH (Pro Se) Conservator: SEIDEL, MARY E. (Pro Se)	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The Court takes judicial notice of the documents filed in San Mateo County case number 26-PRO-00149. Given the Court's 4/17/2026 Second Amended Elder or Dependent Adult Abuse Restraining Order After Hearing in 26-PRO-00149 prevents Co-Conservator Mary Seidel from contacting or being within 100-yards of the Conservatee until 2/18/2031, Co-Conservator Mary Seidel is suspended as Co-Conservator. The Court issues an Order to Show Cause to Co-Conservator Mary Seidel as to why she should not be removed as Co-Conservator. Joseph Seidel shall remain as sole conservator pending the Court's determination as to removal. Hearing on the Order to Show Cause is set on <u>November 6, 2026 at 9:00 am</u> . The Court appoints independent counsel to represent the Conservatee. The review hearing is CONTINUED to <u>November 6, 2026 at 9:00 am</u> to be heard with the Order to Show Cause.		



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PRO118736	CONSERVATORSHIP OF MONZERRAD IBARRA	
Line 14	Conservatee: IBARRA, MONZERRAD Conservator: PLANCARTE, RAQUEL (Pro Se) Mother: PLANCARTE, RAQUEL (Pro Se)	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The request to waive the account is approved. The assessment amount of \$850.00 for the cost of the Court's investigation is ordered and deferred until the Court determines sufficient funds exist.		

Hearings Total: 14